

# The Motor Vehicles (Amendment) Act, 2000

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[An Act further to amend the Motor Vehicles Act, 1988.](#)

[BE it enacted by Parliament in the Fifty- first Year of the Republic of India as follows:-](#)

[1.](#)

[Short title.-](#)

[This Act may be called the Motor Vehicles \(Amendment\) Act, 2000 .](#)

[2.](#)

[Substitution of new section for section 52.-](#)

[For section 52 of the Motor Vehicles Act, 1988 \(](#)

[59 of 1988](#)

[\) \(hereinafter referred to as the principal Act\), the following section shall be substituted, namely:-' 52. Alteration in motor vehicle.-](#)

(1)

No owner of a motor vehicle shall so alter the vehicle that the particulars contained in the certificate of registration are at variance with those originally specified by the manufacturer: Provided that where the owner of a motor vehicle makes modification of the engine, or any part thereof, of a vehicle for facilitating its operation by different type of fuel or source of energy including battery, compressed natural gas, solar power, liquid petroleum gas or any other fuel or source of energy, by fitment of a conversion kit, such modification shall be carried out subject to such conditions as may be prescribed: Provided further that the Central Government may prescribe specifications, conditions for approval, retrofitment and other related matters for such conversion kits: Provided also that the Central Government may grant exemption for alteration of vehicles in a manner other than specified above, for any specific purpose.

(2)

Notwithstanding anything contained in sub-section (1), a State Government may, by notification in the Official Gazette, authorise, subject to such conditions as may be specified in the notification, and permit any person owning not less than ten transport vehicles to alter any vehicle owned by him so as to replace the engine thereof with engine of the same make and type, without the approval of registering authority.

(3)

Where any alteration has been made in motor vehicle without the approval of registering authority or by reason of replacement of its engine without such approval under sub-section (2), the owner of the vehicle shall, within fourteen days of the making of the alteration, report the alteration to the registering authority within whose jurisdiction he resides and shall forward the certificate of registration to that authority together with the prescribed fee in order that particulars of registration may be entered therein.

(4)

A registering authority other than the original registering authority making any such entry shall communicate the details of the entry to the original registering authority.

(5)

Subject to the provisions made under sub-sections (1), (2), (3) and (4), no person holding a vehicle under a hire-purchase agreement shall make any alteration to the vehicle except with the written consent of the registered owner. Explanation.- For the purposes of this section, "alteration" means a change in the structure of a vehicle which results in a change in its basic feature.'

3.

Amendment of section 58.-

In section 58 of the principal Act, sub-section (4) shall be omitted.

4.

Amendment of section 66.-

In section 66 of the principal Act, in sub-section (3), clause (h) shall be omitted.

5.

Insertion of new section 217A.-

After section 217 of the principal Act, the following section shall be inserted, namely:- "217A. Renewal of permits, driving licences and registration granted under the Motor Vehicles Act, 1939 .- Notwithstanding the repeal by sub-section (1) of section 217 of the enactments referred to in that sub-section, any certificate of fitness or registration or licence or permit issued or granted under the said enactments may be renewed under this Act.

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